

THE CONSTITUTION (FIFTY-SEVENTH AMENDMENT) ACT, 1987

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Constitution and Amendments

THE CONSTITUTION (FIFTY-SEVENTH AMENDMENT) ACT, 1987

India

THE CONSTITUTION (FIFTY-SEVENTH AMENDMENT) ACT, 1987

Act 057 of 1987

Published in Gazette of India on 25 August 1987

Commenced on 15 September 1987

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[Note: The original publication document is not available and this content could not be verified.]

Statement of Objects and Reasons appended to the Constitution (Fifty-eighth Amendment) Bill, 1987 which was enacted as THE CONSTITUTION (Fifty-seventh Amendment) Act, 1987

STATEMENT OF OBJECTS AND REASONS

The Constitution (Fifty-first Amendment) Act, 1984 was enacted to provide for reservation of seats in the House of the People for the Scheduled Tribes in Nagaland, Meghalaya, Mizoram and Arunachal Pradesh and also for reservation of seats for Scheduled Tribes in the Legislative Assemblies of Nagaland and Meghalaya by suitably amending articles 330 and 332. Even though these States are predominantly tribal areas, the underlying objective of the aforesaid Act was to ensure that the members of the Scheduled Tribes in these areas do not fair to secure a minimal representation because of their inability to compete with the advanced sections of the people.

2.

The Constitution (Fifty-first Amendment) Act, though formally enforced, cannot be fully implemented unless parallel action is taken to determine the seats which are to be reserved for Scheduled Tribes in these areas. The number of

seats reserved for Scheduled Castes and Scheduled Tribes in the Legislative Assembly of any State under article 332 of the Constitution will have to be determined having regard to the provisions of article 332(3) of the Constitution. However, in view of the historical background with respect to the areas comprised in the North-Eastern States, the circumstances obtaining in these areas in the state of development of the Scheduled Tribes in these areas and other relevant considerations, it is considered necessary to provide for special arrangements with regard to the reservation for Scheduled Tribes in these areas for a temporary period so as to facilitate easy transition of these areas to the normal arrangements as envisaged in the Constitution. It is, therefore, proposed to further amend article 332 of the Constitution for making a temporary provision, until the re-adjustment of seats on the basis of the first census after the year 2000 under article 170 of the Constitution for these States, for the determination of the number of seats reserved for Scheduled Tribes.

3.

The proposed amendment seeks to provide that if all the seats in the Legislative Assembly of such States in existence on the date of coming into force of this Constitution Amendment Act are held by the members of the Scheduled Tribes, all the seats except one shall be reserved for Scheduled Tribes and in any other case such number of seats as bears to the total number of seats a proportion not less than the number of members belonging to the Scheduled Tribes in the existing Assembly bears to the total number of seats in the existing Assembly.

4.

The Bill seeks to achieve the above object.

An Act further to amend the Constitution of India.

BE it enacted by Parliament in the Thirty-eighth Year of the Republic of India as follows:-

1.

Short title and commencement.-

(1)

This Act may be called the Constitution (Fifty-seventh Amendment) Act, 1987.

(2)

It shall come into force on such date_675 as the Central Government may, by notification in the Official Gazette, appoint.

2. Amendment of article 332.-

(1)

In article 332 of the Constitution, after clause (3), the following clause shall be inserted, namely:-

"(3A) Notwithstanding anything contained in clause (3), until the taking effect, under article 170, of the re-adjustment, on the basis of the first census after the year 2000, of the number of seats in the Legislative Assemblies of the States of Arunachal Pradesh, Meghalaya, Mizoram and Nagaland, the seats which shall be reserved for the Scheduled Tribes in the Legislative Assembly of any such State shall be,-

(a)

if all the seats in the Legislative Assembly of such State in existence on the date of coming into force of the Constitution (Fifty-seventh Amendment) Act, 1987 (hereafter in this clause referred to as the existing assembly) are held by members of the Scheduled Tribes, all the seats except one;

(b)

in any other case, such number of seats as bears to the total number of seats, a proportion not less than the number (as on the said date) of members belonging to the Scheduled Tribes in the existing Assembly bears to the total number of seats in the existing Assembly."

(2)

The amendment made to article 332 of the Constitution by sub-section (1) shall not affect any representation in the Legislative Assembly of the State of Arunachal Pradesh or the Legislative Assembly of the State of Meghalaya or the Legislative Assembly of the State of Mizoram or the Legislative Assembly of the State of Nagaland until the dissolution of the Legislative Assembly of the State of Arunachal Pradesh or the Legislative Assembly of the State of Meghalaya or the Legislative Assembly of the State of Mizoram or the Legislative Assembly of the State of Nagaland existing at the commencement of this Act.

[The Constitution (Fifty-seventh Amendment) Act, 1987, dealt with the reservation of seats for tribal people of the North-Eastern states (Mizoram, Nagaland, Meghalaya and Arunachal Pradesh) in the Lower House of Parliament and

State legislatures. This cannot be considered to be one of the major amendments but it was an important move for the upliftment of the weaker sections or those sections of society that were neglected for a very long time. The Act decided the rule of reservation or the rule for calculating the number of seats that were to be reserved for the Scheduled Tribes.

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